

Court No. - 32

Case :- WRIT - C No. - 10563 of 2019

Petitioner :- Sukhpal Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Arvind Kumar Srivastava, Shrikant Srivastava

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

This writ petition has been filed inter alia for the following reliefs:

"(a) issue a writ, order or direction in the nature of Mandamus directing to the respondent no. 3 to amend/correct the electricity bill as per weight of 1 kw.

(b) issue a writ order or direction in the nature of mandamus directing to the respondent no. 2 after the amendment/correction in Electricity Bill of petitioner, the respondent no. 3 may take the electricity bill from the petitioner from due date and onwards till i.e. 27.10.2018.

(c) issue a writ order or direction in the nature of mandamus directing the respondent no. 3 to restore the electricity connection of the petitioner.

(d) Issue a writ order or direction in the nature of mandamus directing the respondents concern not to take any coercive action against the petitioner.

(e) issue any other writ order or direction which this Hon'ble Court may deem fit and proper in the present circumstances of the case, so that justice be done.

(d) award the cost of the writ petition to the petitioner."

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 3, Executive Engineer/appropriate authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law expeditiously preferably within 30 days thereafter from the date of receipt of a certified copy of this order, copy of the writ petition and its annexures by a speaking order after giving opportunity of hearing to the petitioner.

Electricity Department is further directed to restore the electricity connection forthwith. For a period of 45 days from today no coercive measures shall be taken against the petitioner, provided he files a petition under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within the stipulated period as provided herein above.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 4.4.2019
Bhanu